

Dr. Smt. Neeraj Singh @ Neeraj Chouhan ... vs Dr. Goverdhansingh Shekhawat S/O Shri ... on 2 March, 2023

Author: Sameer Jain

Bench: Sameer Jain

[2023/RJJP/003598]

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 114/2020

Dr. Smt. Neeraj Singh @ Neeraj Chouhan W/o Dr. Kunwar
Goverdhansingh Shekhawat, Aged About 30 Years, D/o
Krishanveer Singh Chouhan, Resident Of A-215, Gali No. 7, Moti
Nagar, Queens Road, Vaishali Nagar, Jaipur.
-----Petitioner

Versus

Dr. Goverdhansingh Shekhawat S/o Shri Tejsingh Shekhawat,
House No. 476, Marg No. 2, Hanuwant-A, Bjs Paota C Road,
Jodhpur.
-----Respondent

For Petitioner(s) : None present
For Respondent(s) : None present

HON'BLE MR. JUSTICE SAMEER JAIN
Order

02/03/2023

1. No one has appeared on behalf of the parties. The matter pertains to matrimonial disputes and the law mandates that such cases should be disposed in a time bound manner.
2. The matter pertains to the year 2021. No one is appearing on account of the ongoing lawyers' strike. However, as per Hon'ble Apex Court judgment of Harish Uppal vs. Union of India: (2002) 3 SCC 45, this court is constraint to take up the matter for final disposal, as per the pleadings, as service in the present matter is complete.
3. This transfer application has been filed by the applicant-wife under Section 24 of the Code of Civil Procedure seeking transfer of Case No. 0373/2020 titled as Dr. Goverdhan Singh vs. Dr. Neeraj Singh filed by the non-applicant-husband under Section 13 of the [2023/RJJP/003598] (2 of 3) [CTA-114/2020] Hindu Marriage Act, 1955 from Family Court No. 1, Jodhpur to Family Court,

Jaipur.

4. The transfer is sought primarily on the following grounds:

- (i) That the applicant-wife is presently residing at her parental house in Jaipur with her aged father.
- (ii) That the marriage between the parties was solemnized in Jaipur as well.
- (iii) That the distance between Jodhpur and Jaipur is approximately 250 kilometers.
- (iv) That the applicant-wife has no infrastructural support, in terms of family members, who can accompany her to attend court proceedings in Jodhpur.
- (v) That the applicant-wife apprehends threat to her life and liberty, if she is made to travel to Jodhpur on every date of hearing in the matter.

5. Considering the contentions put forth hereinabove and considering the fact that the applicant is presently residing at her parental home in Jaipur; that the marriage between the parties was solemnized in Jaipur as well; that the applicant does not have any infrastructural support, in terms of family members, who can accompany her to court proceedings pending in Jodhpur; that the distance between Jodhpur and Jaipur is approximately 250 kilometers; considering the provisions of Section 19 of the Hindu Marriage Act, 1955 and relying upon Hon'ble Apex Court judgments of N.C.V. Aishwarya Vs. A.S. Saravana Karthik Sha: Civil Appeal No.4894/2022, Sumita Singh Vs. Kumar Sanjay & Ors.: AIR 2002 SC 396, Rajni Kishor Pardeshi Vs. Kishor Babulal Pardeshi: (2005) 12 SCC 237, and Vaishali [2023/RJJP/003598] (3 of 3) [CTA-114/2020] Shridhar Jagtap Vs. Shridhar Vishwanath Jagtap: AIR 2016 SC 3584, this court deems it just and proper to transfer the case No. 0373/2020 from the Family Court No. 1, Jodhpur to Family Court, Jaipur.

6. Accordingly, the present transfer application is allowed. The Case No. 0373/2020 be transferred from the Family Court No.1, Jodhpur to Family Court, Jaipur.

7. Both parties are directed to appear before the transferee court on 05/04/2023. By that time, the record of the case be transmitted to the transferee Court by the Court concerned. It is made clear that if any of the parties would not appear on the date fixed by this Court, the transferee court would be at liberty to proceed in accordance with law.

8. It is expected that the transferee court shall dispose of the matter as expeditiously as possible; preferably within the prescribed time period as stipulated in the Act.

9. The parties may move appropriate applications seeking exemption of personal presence, which will be decided by the transferee court on its own merits. Further, the parties may be represented by counsels.

10. Stay application and other pending applications, if any, stand disposed of.

(SAMEER JAIN),J ANIL SHARMA /4 Powered by TCPDF (www.tcpdf.org)